

COMMITTEE AMENDMENT
HOUSE OF REPRESENTATIVES
State of Oklahoma

SPEAKER:

CHAIR:

I move to amend SB445 _____
Of the printed Bill
Page _____ Section _____ Lines _____
Of the Engrossed Bill

By deleting the content of the entire measure, and by inserting in lieu thereof the following language:

AMEND TITLE TO CONFORM TO AMENDMENTS

Amendment submitted by: Ross Ford

Adopted: _____

Reading Clerk

STATE OF OKLAHOMA

2nd Session of the 60th Legislature (2026)

PROPOSED POLICY
COMMITTEE SUBSTITUTE
FOR ENGROSSED
SENATE BILL NO. 445

By: Hamilton, Jett, Burns,
Bullard, Deevers,
Standridge, McIntosh,
Grellner, Wingard, Woods,
Sacchieri, Hines, Murdock,
Frix, and Guthrie of the
Senate

and

Ford of the House

PROPOSED POLICY COMMITTEE SUBSTITUTE

An Act relating to crimes and punishments;
prohibiting the distribution of private images;
prohibiting the creation of certain private images;
defining private image; defining reasonable
expectation of privacy; clarifying defenses to
distribution of a private image; establishing
location in which an offense shall be considered to
have been committed; establishing that violation
shall be a misdemeanor and providing punishment;
establishing that violation for gain shall result in
a felony and providing punishment; permitting the
Attorney General to petition for emergency injunctive
relief or other necessary relief; clarifying Internet
service providers, search engines, cloud service
providers, or affiliates or subsidiaries are not
responsible for certain acts; clarifying that
developers and providers of certain general purpose
technology are not liable; stipulating that
developers and providers cannot act with knowledge or
reckless disregard that encourages the creation,
alteration, or generation of a private image;
creating a civil right of action against violators by
individuals depicted in a private image; providing

1 award options; clarifying right to bring a civil
2 action is independent of an enforcement action by the
3 Attorney General; providing for codification; and
4 providing an effective date.

5 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

6 SECTION 1. NEW LAW A new section of law to be codified
7 in the Oklahoma Statutes as Section 1040.13c of Title 21, unless
8 there is created a duplication in numbering, reads as follows:

9 A. 1. A person commits the crime of distributing a private
10 image if he or she knowingly posts, emails, texts, transmits, or
11 otherwise distributes a private image without the written consent of
12 the depicted individual and the depicted individual had a reasonable
13 expectation of privacy against transmission of the private image.

14 2. A person commits the crime of creating a private image if he
15 or she knowingly creates, records, or alters a private image without
16 the consent of the depicted individual and the depicted individual
17 had a reasonable expectation of privacy against the creation,
18 recording, or alteration of the private image.

19 B. For purposes of this section:

20 1. "Private image" means a photograph, digital image, video,
21 film, or other recording of an individual who is identifiable from
22 the recording itself or from the circumstances of its transmission
23 and who is engaged in sexually explicit conduct, meaning any
24 touching of the genitals, pubic areas, or buttocks of the human male

1 or female, or the breasts of the female, whether alone or between
2 members of the same or opposite sex or between humans and animals in
3 an act of apparent sexual stimulation or gratification. The term
4 "private image" shall include:

- 5 a. a recording that has been edited, altered, or
- 6 otherwise manipulated from its original form, and
- 7 b. a recording that a reasonable person would believe
- 8 depicts an identifiable individual, regardless of
- 9 whether any portion of the recording depicts another
- 10 individual or is artificially generated; and

11 2. "Reasonable expectation of privacy" means circumstances in
12 which:

- 13 a. the individual depicted created or consented to the
- 14 creation of the private image believing it would
- 15 remain confidential, or
- 16 b. the sexual conduct depicted was involuntary.

17 There is no reasonable expectation of privacy against transmission
18 of a private image voluntarily made in a public setting or made with
19 prior written consent in a commercial setting.

20 C. It is a defense to distributing a private image if the
21 distribution was made in the public interest, including the
22 reporting of unlawful conduct, lawful law enforcement, legal
23 proceedings, medical treatment, or a bona fide attempt to prevent
24 further distribution of the private image.

1 D. An offense under this section shall be considered to have
2 been committed in any county in which any part of the offense
3 occurred, in the county of residence of the victim or defendant, or
4 in any county where the image was received.

5 E. Any person who violates the provisions of this section
6 shall, upon conviction, be guilty of a misdemeanor punishable by
7 imprisonment in a county jail for not more than one (1) year, or by
8 a fine of not more than One Thousand Dollars (\$1,000.00), or by both
9 such fine and imprisonment.

10 F. Any person who violates or attempts to violates this section
11 and who gains or attempts to gain any property or who gains or
12 attempts to gain anything of value as a result of the nonconsensual
13 dissemination or threatened dissemination of private sexual images
14 or artificially generated sexual depictions shall, upon conviction,
15 be guilty of a Class D1 felony offense punishable by imprisonment as
16 provided for in subsections B through F of Section 20N of Title 21
17 of the Oklahoma Statutes. A second or subsequent violation of this
18 subsection shall be a Class D1 felony offense, punishable by
19 imprisonment as provided for in subsections B through F of Section
20 20N of Title 21 of the Oklahoma Statutes, and the offender shall be
21 required to register as a sex offender under the Sex Offenders
22 Registration Act.

23 G. If the Attorney General has reason to believe a person has
24 engaged in, or is engaging in, a violation of this section, the

1 Attorney General may petition for emergency injunctive relief or
2 other necessary relief to enjoin the violation and may require the
3 production of the written consent required under this section.

4 H. No Internet service provider, search engine, cloud service
5 provider, or affiliate or subsidiary thereof shall be held to have
6 violated this section solely for providing access or connection to
7 or from a website, or for transmitting, downloading, storing, or
8 providing access software for content not under the control of the
9 provider, to the extent the provider is not responsible for the
10 creation of the private image.

11 I. 1. A developer or provider of technology shall not be held
12 liable under this section solely for providing or developing a
13 neutral, general-purpose tool that has substantial lawful uses and
14 is not designed, marketed, or promoted for the creation of a private
15 image.

16 2. Paragraph 1 of this subsection does not apply to a developer
17 or provider of technology that, with knowledge or reckless
18 disregard, designs, markets, advertises, promotes, configures, or
19 operates a product or service in a manner that facilitates, enables,
20 or encourages the creation, alteration, or generation of a private
21 image.

22 3. Conduct described in paragraph 2 of this subsection
23 includes, but is not limited to:

- a. promoting a product or tool to generate sexually explicit, nude, or sexualized images of an identifiable individual,
- b. providing prompts, tutorials, demonstrations, or examples instructing users on how to create a private image,
- c. training, fine-tuning, or configuring a system primarily for the generation of sexually explicit or nonconsensual sexualized imagery of an identifiable individual, or
- d. making a material contribution to the production, alteration, or dissemination of a private image.

4. A developer or provider described in paragraph 2 of this subsection shall be deemed responsible for the creation or facilitation of a private image.

5. Nothing in this subsection shall be construed to limit liability where a developer or provider knowingly or recklessly profits from the production or dissemination of a private image.

SECTION 2. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 1040.13d of Title 21, unless there is created a duplication in numbering, reads as follows:

A. 1. An individual depicted in a private image, as defined in Section 1 of this act, may bring a civil action against a violator

1 for damages arising from the production, disclosure, facilitation,
2 or payment processing of the such images of the individual.

3 2. In an action brough under this section, a court may award:

- 4 a. actual damages,
- 5 b. statutory damages, if applicable,
- 6 c. injunctive or equitable relief,
- 7 d. reasonable attorney fees and court costs, and
- 8 e. any other relief the court deems appropriate.

9 B. 1. The right to bring a civil action under this section is
10 independent of any action taken by the Attorney General.

11 2. The existence, nonexistence, pendency, resolution, or
12 declination of an enforcement action by the Attorney General shall
13 not:

- 14 a. bar private right of action,
- 15 b. delay a private right of action,
- 16 c. limit or diminish a private right of action, or
- 17 d. serve as a prerequisite to filing a civil action under
18 this section.

19 3. A private action may proceed regardless of whether the
20 Attorney General has initiated, declined to initiate, or resolved an
21 enforcement action concerning the same conduct.

22 SECTION 3. This act shall become effective November 1, 2026.

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24 60-2-17247 MJ 03/31/26